

Court No. - 21

Case :- WRIT - C No. - 12243 of 2022

Petitioner :- Avnish Shukla

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Dinesh Pathak,J.

The instant writ petition has been filed praying for a mandamus commanding the respondents to take appropriate action in pursuance of the application of the petitioner dated 5.4.2022, whereby the petitioner has tried to dispute various bills issued by the Electricity Department (respondent nos. 2 and 3).

Learned counsel for the Electricity Department, Sri Narendra Kumar Tiwari, points out that Clause 6.5 of the U.P. Electricity Supply Code, 2005, provides for the manner in which electricity bill can be disputed by a consumer. He submitted that the petitioner has not followed the procedure prescribed thereunder.

Counsel for the petitioner could not show to us that the petitioner has followed the procedure prescribed under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Consequently, we dispose of the writ petition with liberty to the petitioner to raise dispute as provided under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and in which event, the same shall be decided in accordance with law.

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

Order Date :- 4.5.2022

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